

Court No. - 38

Case :- WRIT - C No. - 8381 of 2019

Petitioner :- Niyaj

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Praveen Singh, Abhishe Pandey

Counsel for Respondent :- C.S.C., Awadhesh Kumar Saxena

Hon'ble Abhinava Upadhyay, J.

Hon'ble Jayant Banerji, J.

The petitioner has come to this Court that a demand notice has been issued for a sum of Rs. 43,177/- dated 8.7.2018, which is electricity dues.

It is submitted that the dues is during the period before the disconnection and at the time when the connection was in the name of the father of the petitioner, who died in 2000 and thereafter electricity was disconnected. The petitioner applied for new connection which is not being granted. It is further submitted that certain dues are pending.

Learned counsel for the petitioner submits that the petitioner is ready to pay the amount provided some instalments be fixed.

Shri Awadhesh Kumar Saxena, learned counsel for the respondents submits that no new connection can be given unless the dues are clear.

Let the petitioner file a representation before the Executive Engineer for fixing instalments as provisioned under Clause 6.14 of the U.P. Electricity Supply Code, 2005 and in case such an application is filed, the same be considered and decided by the Executive Engineer within one month from the date a certified copy of this order along with representation is presented before it.

With the aforesaid observation/direction, the writ petition is disposed of.

Order Date :- 11.3.2019

Sunil Kr. Gupta

(Jayant Banerji, J.) (Abhinava Upadhyay, J.)